

SOTOMAYOR, J., dissenting

garding criminal liability. Under that rule, any use of official power for any purpose, even the most corrupt purpose indicated by objective evidence of the most corrupt motives and intent, remains official and immune. Under the majority's test, if it can be called a test, the category of Presidential action that can be deemed "unofficial" is destined to be vanishingly small.

Ultimately, the majority pays lip service to the idea that "[t]he President, charged with enforcing federal criminal laws, is not above them," *ante*, at 614, but it then proceeds to place former Presidents beyond the reach of the federal criminal laws for any abuse of official power.

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So how does the majority get to its rule? With text, history, and established understanding all weighing against it, the majority claims just one arrow in its quiver: the balancing test in *Nixon v. Fitzgerald*, 457 U.S. 731 (1983). Yet even that test cuts against it. The majority concludes that official-acts immunity "is required to safeguard the independence and effective functioning of the Executive Branch," *ante*, at 614, by rejecting that Branch's own protestations that such immunity is not at all required and would in fact be harmful, see Brief for United States 18–24, 29–30. In doing so, it decontextualizes *Fitzgerald's* language, ignores important qualifications, and reaches a result that the *Fitzgerald* Court never would have countenanced.

In *Fitzgerald*, plaintiff A. Ernest Fitzgerald sued then-former President Nixon for money damages. He claimed that, while in office, Nixon had been involved in unlawfully firing him from his government job. See 457 U.S., at 733–741. The question for the Court was whether a former President had immunity from such a civil suit. The Court explained that it was "settled law that the separation-of-powers doctrine does not bar every exercise of jurisdiction over the President of the United States." *Id.*, at 753–754. To determine whether a particular type of suit against a